

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
JHONATHAN FERNANDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, JOSE RODRIGUEZ, AND JOHN
OR JANE DOES 1-10,Defendants.
-----X

Index No.:

Purchased:

Plaintiff designates

Bronx County as the place of trial

The basis of the venue is where the
injury occurredSUMMONS**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 29, 2020
-----**SIM & DEPAOLA, LLP**

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.
Purchased:

-----X
JHONATHAN FERNANDEZ,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, JOSE RODRIGUEZ, AND JOHN
OR JANE DOES 1-10,

Defendants.
-----X

Plaintiff, JHONATHAN FERNANDEZ, by his attorneys, Sim & DePaola, LLP, for his complaint against the above Defendants, City of New York, , JOSE RODRIGUEZ, individually and officially in his capacity as a New York City police officer, and JOHN or JANE Doe 1-10, alleges and states as follows:

1. This is a civil rights action, in which plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1983, 1985, 1986 and 1988, the laws of the State of New York, in addition to the self-executing clauses or implied private causes of action within the New York State Constitution, for the violations of her civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, as well as the Laws and Constitution of the State of New York.

2. Plaintiff's claims arise from an October 25, 2019 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate result, Plaintiff was unlawfully detained within the New York City Police Department, within the jurisdictional confines of Bronx County, New York. Plaintiff was deprived of his liberty for

approximately eight (8) hours and suffered serious physical and emotional injuries. He was unlawfully detained, until the NYPD officers released him, on October 25, 2019.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff, JHONATHAN FERNANDEZ (hereinafter as "Plaintiff") resides at 533 W 145th Street, City and State of New York.

5. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

6. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

7. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

8. Defendant JOSE RODRIGUEZ ("RODRIGUEZ") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant RODRIGUEZ was, at the time relevant herein, a police officer in the NYPD, located at the 44th Precinct, 2. E. 169th St., The Bronx, NY 10452. Defendant RODRIGUEZ is being sued in his individual and official capacities.

9. At all times relevant Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

10. At all times relevant herein, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, are being sued in their individual and official capacities.

11. At all times herein mentioned, Defendants, including RODRIGUEZ, and John and/or John Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

12. On, or about, October 25, 2019, at approximately 1:00 P.M., Plaintiff was in the vicinity of Edward L. Grant Hwy and Shakespeare Avenue, County of Bronx, State of New York.

13. Plaintiff was lawfully driving his vehicle heading to his mother's house.

14. As Plaintiff was lawfully driving his vehicle, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, had drove in an unmarked vehicle behind Plaintiff's car and another unmarked vehicle drove next to his car to have Plaintiff pull over with no lights and sirens.

15. Plaintiff was unaware Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, were officers trying to pull him over as they were plain clothed officers and proceeded driving. Then defendants pulled out a gun on Mr. Fernandez and he stopped the vehicle out of fear.

16. On said date, time, and location Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, approached Plaintiff's vehicle without lawful reason to do so, as he was committing no crime.

17. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, then instructed Plaintiff to step out of the vehicle.

18. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, instructed Plaintiff to present his driver's license and the vehicle registration. Plaintiff respectfully complied, handed over his driver's license and the vehicle registration

19. At all times, Plaintiff's had a valid New York State's License.

20. At all times, Plaintiff's vehicle had valid temporary plates from New Jersey and a valid registration.

21. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, unlawfully seized Plaintiff and began to lawfully question him about his vehicle.

22. At all relevant times, there was no outstanding search warrant issued by any judge or court official that would permit Defendants, including RODRIGUEZ, and John and /or Jane Doe 1-10, to search Plaintiff's person.

23. At all relevant times, there was no outstanding arrest warrant issued by any judge or court official that would permit Defendants, including RODRIGUEZ, and John and/ or Jane Doe 1-10, to arrest Mr. Fernandez.

24. Plaintiff had multiple assaults and batteries, committed to his person, by Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, including but not limited to, being placed in handcuffs too tightly.

25. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, physically removed Plaintiff and transported him to the NYPD 44th Precinct, all against his will and without legal authority, namely without probable cause or judicially authorized arrest warrant.

26. Upon arrival to the 44th Precinct, Plaintiff remained handcuffed in the unmarked vehicle in the Precinct's parking lot.

27. At no time was Plaintiff in possession of any controlled substance to any degree.

28. At all times, Plaintiff was the rightful owner of the vehicle.

29. At all relevant times, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, did not provide truthful facts, regarding the likely presence of controlled substance, to the District Attorney's Office or the Presiding Judge to justify the issuing of a valid search warrant.

30. At all relevant times, the search warrant granted to Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, was only issued to search Plaintiff's car.

31. At all relevant times, Plaintiff was never read his rights pursuant to *Miranda v. Arizona*, 384 U.S. 436 (1966).

32. At all relevant times, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, found no illicit items in on Plaintiff's person nor vehicle.

33. On said date and time, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, went to Mr. Fernandez's mother's home, Ramona Serrera, located at 1420 Shakespeare Avenue, Apartment 1A, County of Bronx, State of New York.

34. On said date and time, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, illegally entered Ms. Serrera's residence.

35. On said date and time, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, illegally searched Ms. Serrera's residence.

36. At all relevant times, there was no search warrant issued by any judge or court official that would permit Defendants, including RODRIGUEZ, and John and /or Jane Doe 1-10, to search Ms. Serrera's residence.

37. At all relevant times, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, found no illicit items in Ms. Serrera's home.

38. At all relevant times, Defendants, including RODRIGUEZ, never presented Ms. Serrera with a justified search warrant.

39. Plaintiff was informed by Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, at the 44th Precinct that they did in fact go to Plaintiff's mother's home but, never presented Plaintiff with a justified search warrant.

40. Plaintiff was eventually brought into the Precinct after being unlawfully detained with handcuffs on in the back of an unmarked NYPD vehicle for approximately six (6) hours.

41. Plaintiff was placed in a cell with handcuffs still remained on and unlawfully detained for approximately an hour.

42. Plaintiff was eventually released by Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, on October 25, 2019. Plaintiff did not receive any charges nor summons from this unlawful arrest.

43. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, returned Plaintiff's vehicle destroyed to the point, Plaintiff could no longer operate his vehicle.

44. At no point did the Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, ever observe Plaintiff committing any alleged crimes as well as criminally possessing any controlled substances to any degree.

45. At no point were the Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

46. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, did not possess a valid, judicially authorized arrest warrant for Plaintiff.

47. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person.

48. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely making an unlawful arrest without an arrest warrant, and arresting an individual without probable cause.

49. Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against Plaintiff.

50. At all times relevant hereto, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause or using excessive force to effectuate his arrest.

51. At all times relevant hereto, Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants RODRIGUEZ, and John and/or Jane Doe 1-10, observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious attempt at a criminal prosecution.

52. Plaintiff asserts that the Defendants, including RODRIGUEZ, and John and/or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

53. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

54. In a report by *NBC Channel 4 News, New York*, entitled "Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times," by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney's Office for the Southern District of New York. Another article from *citylimits.org*, entitled "CityViews: Is NYPD Oversight Really making Homeless Shelters Safer," by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing

has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

55. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

56. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

57. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

58. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco’s lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

59. Other articles include: (i) “Testifying’ by Police: A Stubborn Problem.,” by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) “New York Detective Charged with Faking Lineup Results,” by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) “He Excelled as a Detective, Until Prosecutors Stopped Believing Him,” by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) “Review Board Notes Rise in New York Police Officers’ False Statement,” by J. David Goodman, *The New York Times*, May 14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*,

November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

60. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

61. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

62. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

63. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of his civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of

constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

64. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

65. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

66. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including RODRIGUEZ, John or Jane Doe 1-10.

67. As a direct and proximate result of the acts of Defendants, including the City, whose including RODRIGUEZ, John and/or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

68. The above paragraphs are here incorporated by reference as though fully set forth herein.

69. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause to do so.

70. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

71. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

72. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

73. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

74. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

75. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTIONUnlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

76. The above paragraphs are here incorporated by reference as though fully set forth herein.
77. Defendants subjected plaintiff and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
78. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.
79. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.
80. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.
81. Accordingly, Defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.
82. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTIONFalse Arrest and False Imprisonment Under
New York State Law

83. The above paragraphs are here incorporated by reference as though fully set forth herein.
84. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
85. Plaintiff was conscious of his confinement.
86. Plaintiff did not consent to his confinement.
87. Plaintiff's arrest and false imprisonment was not otherwise privileged.

88. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

90. The above paragraphs are here incorporated by reference as though fully set forth herein.

91. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

92. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

93. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

94. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

95. The above paragraphs are here incorporated by reference as though fully set forth herein.

96. Defendants made Plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.

97. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

98. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

100. The above paragraphs are here incorporated by reference as though fully set forth herein.

101. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

102. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without him consent.

103. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

104. The above paragraphs are here incorporated by reference as though fully set forth herein.

105. Defendants initiated the prosecution against Plaintiff.

106. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

107. Defendants acted with malice.

108. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

109. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth herein.

112. Defendants initiated the prosecution against Plaintiff.

113. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

114. Defendants acted with malice.

115. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

116. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

118. The above paragraphs are here incorporated by reference as though fully set forth herein.

119. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

120. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

121. Defendants intended to inflict substantial harm upon Plaintiff.

122. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

123. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

125. The above paragraphs are here incorporated by reference as though fully set forth herein.

126. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

127. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

128. Defendants intended to inflict substantial harm upon Plaintiff.

129. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

130. Defendants' actions deprived Plaintiff of her constitutional rights to free from illegal searches and seizures and to not be deprived of her liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

131. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION
Denial of Right to Fair Trial Under
New York State Law

132. The above paragraphs are here incorporated by reference as though fully set forth herein.

133. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

134. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

135. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiff's liberty and freedom of movement.

136. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

137. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

139. The above paragraphs are here incorporated by reference as though fully set forth herein.

140. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

141. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

142. Defendants' actions resulted in post-arraignment restrictions and deprivations upon plaintiff's liberty and freedom of movement.

143. Accordingly, defendants violated Plaintiff's right to fair trial, pursuant to the Fifth, Sixth and Fourteenth Amendments to United States Constitution.

144. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

145. The above paragraphs are here incorporated by reference as though fully set forth herein.

146. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of her rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of her liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

147. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

148. As a result, Plaintiff sustained injuries to her person, was deprived of her liberty or was deprived of rights or privileges of citizens of the United States.

149. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of her civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

150. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

151. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

152. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

155. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

157. The above paragraphs are here incorporated by reference as though fully set forth herein.

158. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

159. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

160. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

161. The above paragraphs are here incorporated by reference as though fully set forth herein.

162. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

163. Defendant City breached those duties of care.

164. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

165. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

166. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

167. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

168. The above paragraphs are here incorporated by reference as though fully set forth herein.

169. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

170. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

171. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with defendant City's employees.

172. Defendant City's employees engaged in such egregious and flagrant violations of plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City's employees.

173. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

174. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States, pursuant to the Fourth, Sixth and Fourteenth Amendments.

175. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

t) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: May 29th, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

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Bayside, New York 11361

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ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 29, 2020



PETER SIM, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

JHONATHAN FERNANDEZ,

Plaintiff,

-against-

CITY OF NEW YORK, JOSE RODRIGUEZ, AND JOHN OR JANE DOES 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: Peter Sim, Esq
Attorney for Plaintiff
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for